

M/S Malhotra Ice Factory v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 4 February 2016 · Writ-C No. 37741 of 2012 · **Writ dismissed with liberty to pursue clause 6.5; interim discharged.**

HEADNOTE

On the petitioner's statement that it would first seek the statutory remedy under clause 6.5 of the Electricity Supply Code, 2005, the High Court dismissed the writ with that liberty and discharged the interim order protecting the connection from disconnection.

FACTUAL SUMMARY

M/S Malhotra Ice Factory filed Writ-C No. 37741 of 2012 against the State of U.P. and others in respect of its electricity connection. On 22 August 2012 a Division Bench directed that the connection not be disconnected until the next date, and the petition was thereafter listed on several dates, including with Writ Petition No. 27352 of 2013. On 4 February 2016 counsel for the petitioner stated that the petitioner would first pursue the statutory remedy under clause 6.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

statutory remedy under clause 6.5

HOLDING

Where the consumer states that it will seek the statutory remedy under clause 6.5 of the Electricity Supply Code, 2005 at the first instance, the writ is dismissed with that liberty and any interim order stands discharged. ¶ 5

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY CONNECTION OR BILLING DISPUTE

No adjudication on the bill or disconnection; petitioner relegated to clause 6.5. ¶ 5